

The 8 most common reasons Georgia Medicaid denies a Miller Trust

A plain-English checklist of the paperwork errors that cost Georgia families a month of benefits — each with the DCH citation behind it, so you can verify before you file, not after the denial letter arrives.

Read this first — the funding-month rule. A Miller Trust (Qualified Income Trust) only works for a given month if it is **both signed and funded in that same calendar month**. DCH does not back-date eligibility. Sign on the 28th but fund on the 2nd of the next month, and the first month is billed at the Georgia private-pay rate — roughly **\$8,821–\$9,429**. Most families lose a month to this timing gap, not to ineligibility.

The 8 denial traps to check before you file

Every trap below is drawn from DCH policy. Verify each against the citation shown before you submit the Medicaid application.

1

QIT not established AND funded before the end of the benefit month

Per Section 2407, an application is denied for excess income for any month in which a QIT was not both established and funded by the end of that month and the applicant's income is at or above the Medicaid Cap. 'Properly funded' means depositing at least the difference between the income cap (minus a dollar) and the applicant's total income. There is no back-dating — the QIT is effective beginning the month it is completed and signed.

Source: GA DFCS Medicaid Policy Manual, Section 2407

2

Patient Liability / Cost Share not paid on time

The applicant's care payment (Patient Liability/Cost Share) must be paid by the end of the month following the month the income is received. If the required payments are not made, the applicant is not following the provisions of the trust and is not eligible for Medicaid; DFCS acts to close the case for the first month timely notice permits.

Source: GA DFCS Medicaid Policy Manual, Section 2407

3

An inappropriate payment is made from the trust

Paying lawyer fees, mortgage payments, costs of doing business, or other non-allowable items from the QIT invalidates it; those amounts are then counted as income to the applicant, making them ineligible. The only allowable disbursements are the Patient Liability/Cost Share to the facility, the Personal Needs Allowance, diversion to a community spouse or dependent children, certain medical expenses, and bank fees.

Source: GA DFCS Medicaid Policy Manual, Section 2407

4

Trust is revocable, not irrevocable

A revocable QIT does not meet the criteria and is treated as a countable resource under the OBRA '93 trust rules. Form 948 is irrevocable by its terms.

Source: GA DFCS Medicaid Policy Manual, Section 2407

5

Resources placed in the trust

The QIT may contain only the applicant's income. Money from an existing account, a non-liquid resource, or a resource converted to cash cannot be placed in the trust. Depositing resources invalidates the QIT.

Source: GA DFCS Medicaid Policy Manual, Section 2407

6

Applicant named as their own trustee

Section 2407 states the applicant/recipient may not act as his or her own trustee. A QIT in which the beneficiary is the trustee does not meet Georgia's requirements.

Source: GA DFCS Medicaid Policy Manual, Section 2407

7

Trust backdated or established in another state

A QIT may not be backdated — it is effective only from the month all required parties sign. A QIT established in another state cannot be used to qualify for Georgia Medicaid; the applicant must establish a Georgia QIT.

Source: GA DFCS Medicaid Policy Manual, Section 2407

8

Missing DCH remainder (payback) clause

The trust must provide that at the applicant's death the remainder goes to the Georgia Department of Community Health up to the total Medicaid paid for the applicant's care. A QIT without the DCH remainder provision does not qualify; Form 948 already contains the required clause.

Source: GA DFCS Medicaid Policy Manual, Section 2407

How families get every step right the first time

This checklist tells you *what* can go wrong. The full Georgia Miller Trust Setup Kit walks through avoiding each one in order — the word-for-word bank script for when the branch refuses to open the account, the pre-filled funding worksheet using the CMS January 2026 figures income cap of \$2,982, and the day-before-you-file checklist. It's backed by a money-back guarantee: if DCH rejects the trust for a reason traceable to following the kit, you get a full refund.

[See the Georgia kit →](#)

Verify the sources yourself

- Official DCH template — [DFCS Medicaid Policy Manual, Section 2407 \(Qualified Income Trust; effective May 2026, MT 79\)](#)
- DCH policy manual — [Georgia Department of Community Health](#)

— James Whitfield, Miller Trust Guide · [millertrustguide.com](#)

Informational only. This checklist is not legal advice and is not a substitute for consultation with a licensed attorney. We are not a law firm and we do not practice law. We do not draft legal documents. State Medicaid rules vary and change; verify all information with DCH and an attorney licensed in Georgia before acting.